

12. 9:00 AM CASE NUMBER: C25-02242

CASE NAME: MECHANICS BANK VS. BHUPINDER LALLY

HEARING ON SUMMARY MOTION BY PLAINTIFF.

FILED BY: MECHANICS BANK

TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **May 4, 2026, 9:00 am in Department 34.**

13. 9:00 AM CASE NUMBER: C25-02968

CASE NAME: PAMELA SWARTS VS. AMY PATTON

***HEARING ON MOTION IN RE: CONSOLIDATE RELATED CASES**

FILED BY: SWARTS, PAMELA

TENTATIVE RULING:

Plaintiff Jeffrey Swarts and plaintiff and defendant Pamela Swarts (“Moving Parties”) bring this motion to consolidate in an effort to consolidate this matter (C25-02968), with a case originally brought in small claims court (MSC25-0485), which was filed by plaintiffs and defendants Travis Patton and Amy Patton (“Opposing Parties”).

For the reasons set forth below, the motion to consolidate is GRANTED.

Background

Opposing Parties filed a small claims action on August 26, 2025, asserting that they executed a lease agreement with Pamela Swarts for the rental of real property (the “Property”). Opposing Parties paid the first month’s rent (\$6,600) and a security deposit (\$6,600) but allege that they soon learned that there was a severe rodent infestation, that was not disclosed, at the Property. They elected to terminate the lease and subsequently sought \$12,500 in small claims court, as a refund of their security deposit and first month’s rent.

Moving Parties filed an unlimited civil action on October 13, 2025, against Opposing Parties and defendant Carolyn Lehman (“Lehman”), asserting a claim against Opposing Parties for breach of contract and asserting claims against Lehman for intentional interference with prospective economic relations and defamation.

On December 30, 2025, the Court entered an order that pursuant to Code of Civil Procedure section 116.390, the small claims case would be transferred to the Superior Court. On January 27, 2026, the Court denied a motion for reconsideration of the December 30, 2025 order.

Legal Standard

Code of Civil Procedure section 1048 provides, “When actions involving a common question or law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in

issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” (Code Civ. Proc., § 1048, subd. (a).) The decision to consolidate is left to the discretion of the trial court. (*Todd Steinberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979 [“Code of Civil Procedure section 1048 grants discretion to the trial courts to consolidate actions involving common questions of law or fact. The trial court’s decision will not be disturbed on appeal absent a clear showing of abuse of discretion.”].)

The Court in *Askew v. Askew* (1994) 22 Cal.App.4th 942, explained: “A motion to consolidate under section 1048 of the Code of Civil Procedure is predicated on the assumption that two or more actions already ‘involv[e] a common question of law or fact.’ The motion requests the court to exercise its *discretion* to consolidate the actions (the court ‘*may* order a joint hearing or trial of any or all the matters in issue in the actions,’ italics added). Therefore, it is possible that actions may be thoroughly ‘related’ in the sense of having common questions of law or fact, and still not be ‘consolidated,’ if the trial court, in the sound exercise of its discretion, chooses not to do so.” (*Id.*, at p. 964 [italics in original].)

Notice of Motion Filing Requirement

California Rules of Court, rule 3.350(a), requires the notice for a motion for consolidation to be filed in each case sought to be consolidated. Here, Moving Parties have not filed notice of this motion in the small claims case. However, the Court will disregard this defect and proceed to the merits of this motion in light of its view that this defect does not affect the substantial rights of the parties. This is because the parties in the civil matter are the same as in the small claims matter and also because Defendant did not raise this issue in its opposition. (Code Civ. Proc., § 475 [“The court must, in every stage of an action, disregard any error, improper ruling, instruction, or defect, in the pleadings or proceedings which, in the opinion of said court, does not affect the substantial rights of the parties.”].)

Analysis

Moving Parties argue that the Court should consolidate this case (C25-02968) with the small claims matter filed by Opposing Parties (MSC25-0485) because both cases “involve identical parties and arise out of the same rental and same course of conduct, such that complete consolidation should be ordered.” (MPA ISO Motion to Consolidate [“Motion”], p. 3:17-20.) They further argue that “Consolidation under these circumstances is warranted and will serve to promote trial convenience and economy by avoiding duplication of procedure and delay, particularly as to duplication of proof of issues common to both cases.” (*Id.*, at p. 3:19-22.)

Opposing Parties argue in opposition to this Motion, that they oppose consolidation because it would deprive them of the small claims forum they filed in. (Opposition, p. 1.) They affirmatively desire to continue their claims in the small claims’ forum for adjudication of the restitution issues their case presented, including whether the lease was effectively rescinded due to habitability violations. (*Ibid.*) On reply, Moving Parties argue that Opposing Parties’ opposition “fails to address any facts or law cited in [Moving Parties’] motion.” (Reply, p. 1.) The reply goes on to argue that “[n]ow that the small claims case has been transferred to the unlimited civil division and the motion for

reconsideration of that transfer has been denied, judicial economy is best served by consolidating the two cases as they concern the same contract, same parties (with the exception of the addition of Defendant Carolyn Lehman in C25-02968), and the same events.” (*Id.*, at pp. 1-2.)

The Court notes that the two matters sought to be consolidated have nearly identical parties, with the addition of Carolyn Lehman in the unlimited civil action. The two cases also both involve the same lease and the same issue as to whether the Property was uninhabitable or not. These all support consolidating the cases.

Further, according to Code of Civil Procedure section 116.390, subdivision (c), “[i]f the small claims action is transferred prior to judgment, both actions shall be tried together in the transferee court.” Thus, because the small claims matter has already been transferred pursuant to Code of Civil Procedure section 116.390, this also supports consolidation of the matters.

Ruling

Moving Parties’ motion to consolidate is **GRANTED**. The actions are consolidated for all purposes pursuant to Code of Civil Procedure section 1048, subdivision (a).

14. 9:00 AM CASE NUMBER: C25-03089
CASE NAME: ROSE MARIE CUTINO VS. SERVICE FINANCE COMPANY, LLC
***HEARING ON MOTION IN RE: TRIAL PREFERENCE**
FILED BY: CUTINO, ROSE MARIE
TENTATIVE RULING:

Plaintiff Rose Marie Cutino (“Plaintiff” or “Cutino”) moves for an order granting a preferential trial date in this action, pursuant to Code of Civil Procedure section 36, subdivision (a), for trial within 120 days from the date of this hearing. Defendant Service Finance Company, LLC (“Defendant” or “SFC”) opposes the motion in part.

For the following reasons, the motion is **DENIED**.

Legal Standard

“A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) [t]he party has a substantial interest in the action as a whole[; and] (2) [t]he health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (Code Civ. Proc., § 36, subdivision (a).)

A motion made under Section 36(a) “may be supported by nothing more than an attorney’s declaration ‘based upon information and belief as to the medical diagnosis and prognosis of any party.’ [Citation.]” (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534, citing Code Civ. Proc., § 36.5 [“[a]n affidavit in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the